

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(CIVIL REVISIONAL JURISDICTION)

*Present:*

*Mr. Justice S M Kuddus Zaman*

**CIVIL REVISION NO. 5901 OF 2023**

In the matter of:

An application under Section 115 of the Code of Civil Procedure.

And

Ali Haider Kaisar and another  
... Petitioners

-Versus-

Sayed Monirul Islam and others  
... Opposite parties

Mr. Abul Kalam Azad, Advocate  
.... For the petitioners.

Mr. Md. Shahidul Islam, Advocate  
.... For the opposite party Nos.1. 3-7  
and 9-12.

**Heard and Judgment on 04.09.2024.**

This Rule was issued calling upon the opposite party Nos.1-12 to show cause as to why the judgment and decree dated 23.07.2023 passed by the learned Joint District Judge, 1<sup>st</sup> Court, Jhalokathi in Title Appeal No.76 of 2021 reversing the judgment and decree dated 24.10.2021 passed by the learned Senior Assistant Judge, Sadar, Jhalokathi in Title Suit No.168 of 2013 dismissing the suit should not be set aside and or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that opposite party as plaintiff instituted above suit for partition seeking a separate saham for 172 acres land of plot No.2508 alleging that their predecessor Saleha Khatun acquired 30 decimal land by inheritance and 141.42 acres land by a registered deed of wakf dated 22.06.1945.

Defendant Nos.1-5 contested above suit alleging that above suit is bad for defect of parties and for not including all ejmali properties into the hotchpotch of the suit. It was further stated that 1.42 acres land admittedly belonged to the wakf and the same is in possession of the mutowalli who was appointed by the High Court Division vide Writ Petition No.1484 of 1998.

In above suit above defendant filed a petition under Order 7 Rule 11 of the Code of Civil Procedure for rejection above plaint and the learned Senior Assistant Judge allowed above petition and rejected the plaint.

Being aggrieved by above judgment and order of the trial Court plaintiffs preferred Title Appeal No.76 of 2021 to the District Judge, Jhalokati which was heard by the learned Joint District Judge, 1<sup>st</sup> Court, Jhalokati who allowed above appeal and set aside the judgment and decree of the trial Court.

Being aggrieved by above judgment and decree of the Court of appeal below the respondents defendants as petitioners moved to this Court and obtained the Rule.

Mr. Abul Kalam Azad, learned Advocate for the petitioners submits that in the plaint the plaintiffs have claimed title in 1.47 acres land on the basis of deed of Wakf dated 22.06.1975 which is not tenable in law. The predecessor of the plaintiffs namely Sirajul Islam challenging the appointment of mutowalli for above waqf property moved to the High Court Division with Writ Petition No.1484 of 1998 which was allowed on 14.01.2001 and Ummadul Islam and Ali Haider were appointed joint mutowalli. Concealing above material facts the plaintiffs have filed this suit only to grab the property of the Waqf. As such the plaint was liable to be rejected. The learned Advocate further submits that all the ejmali property of the plaintiffs and defendants were not brought into the hotchpotch of this partition suit nor all co-sharers were impleaded as defendants. On consideration of above facts and laws the learned Senior Assistant Judge has rightly rejected the plaint. But the learned Joint District Judge failed to appreciate above facts and laws properly and most illegally allowed the appeal and set aside the judgment and decree of the trial Court which is not tenable in law.

On the other hand Mr. Md. Shahidul Islam, lerned Advocate for the opposite part Nos.1, 3-7 and 9-12 submits that in the plaint erroneously title has been claimed in the land of the waqf but in fact the plaintiffs want a partition of the undivided joint property including the property of the waqf. The learned Advocate further submits that in the written statement the defendant did not mention that above suit was bad for defect of parties or for non inclusion of all ejmali property. The plaintiff shall remove all above defects if any by way of amendment of the plaint. On correct appreciation of the materials on record the learned Joint District Judge has rightly allowed the appeal and set aside the judgment and decree of the trial Court which calls for no interference.

I have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It has been admitted by both the learned Advocates at the time of hearing that 1.42 acres land of registered deed of Waqf dated 22.06.1945 is a waqf property and in Writ Petition No. 1484 of 1998 the High Court Division appointed two motuwallis for above waqf property in presence of both parties of this proceedings. As such the learned Advocate for the opposite party frankly concedes that claiming title in

above waqf property by the plaintiff was caused due to unintentional mistake.

As far as non impleading of all co-sharers and all ejmali properties of the disputed joma are concerned the learned Advocate for the opposite parties submits that if above defects are there those will be removed by amendment of the plaint.

It is well settled that a plaint cannot be rejected on the ground of contesting facts which can be removed by amendment of plaint and the learned Advocate for the petitioner could not show us any law which bars the institution of this suit.

The issues raised by the learned Advocate for the respective parties as mentioned above shall be determined at trial by the trial Court on consideration of evidence to be adduced at trial.

The learned Senior Assistant Judge committed serious illegality in rejecting the plaint on the basis of disputed facts. But the learned Judge of the Court of appeal below rightly appreciated the materials on record and correctly allowed the appeal and set aside the judgment and decree of the trial Court which calls for no interference.

In above view of the facts and circumstances of the case and materials on record I am unable to find any substance in this

application under Section 115 of the Code of Civil Procedure and the Rule issued in this connection is liable to be discharged.

In the result, the Rule is discharged.

However, there is no order as to cost.

The order of stay granted at the time of issuance of the Rule is hereby recalled and vacated.

Send down the lower Court's record immediately.

*MD. MASUDUR RAHMAN*  
*BENCH OFFICER*